

HOUSE No. 5493

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, June 9, 2026.

The committee on Ways and Means, to whom was referred the message from Her Excellency the Governor recommending legislation relative to making appropriations for the fiscal year 2026 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 5377), reports, in part, recommending that the accompanying bill ought to pass (House, No. 5493) [Total Appropriation: \$227,272,868.00].

For the committee,

AARON MICHLEWITZ.

HOUSE No. 5493

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for the fiscal year 2026 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are to to forthwith make supplemental appropriations for fiscal year 2026 and to make certain changes in law, each of which is immediately necessary to carry out those appropriations or to accomplish other important public purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2026, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2026. These sums shall be in addition to any amounts previously appropriated and made
9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11	SECTION 2.		
12	EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE		
13	<i>Office of the Secretary</i>		
14	1595-6153	No Cost Call Trust Fund Transfer.....	\$22,520,889
15	<i>Department of Revenue</i>		
16	1233-2401	Chapter 40S Education Payments.....	\$731,409
17	EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES		
18	<i>Department of Public Health</i>		
19	4512-0200	Bureau of Substance Addiction Services.....	\$14,071,288
20	EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES		
21	<i>Housing and Livable Communities</i>		
22	7004-0100	Operation of Homelessness Programs.....	\$8,181,007
23	7004-9315	Low-Income Housing Tax Credit Fee Retained Revenue.....	\$2,000,000
24	EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY		
25	<i>Office of the Chief Medical Examiner</i>		
26	8000-0105	Office of the Chief Medical Examiner.....	\$1,133,659
27	<i>Massachusetts State Police</i>		

28 8100-0102 Troop F Retained Revenue.....\$3,000,000

29 8100-1004 State Police Crime Laboratory.....\$2,881,350

30 *Military Division*

31 8700-0001 Military Division.....\$1,733,000

32 *Massachusetts Emergency Management Agency*

33 8800-0001 Massachusetts Emergency Management Agency.....\$9,470,266

34 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
35 provide for an alteration of purpose for current appropriations, and to meet certain requirements
36 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
37 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
38 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
39 section, for the several purposes and subject to the conditions specified in this section, and
40 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
41 2026. Except as otherwise stated, these sums shall be made available through the fiscal year
42 ending June 30, 2027.

43 MASSACHUSETTS DISTRICT ATTORNEYS' ASSOCIATION

44 0340-0403 For technology costs related to Massachusetts Criminal Procedure Rule 14
45 implementation and other technology costs; provided, that funds may be transferred to the
46 district attorneys' offices for this purpose.....\$1,750,000

47 TRANSPORTATION

Massachusetts Department of Transportation

1596-2527 For the cost of snow and ice removal services incurred by the
Massachusetts Department of Transportation and the department of conservation and recreation;
provided, that funds in this item may be transferred to the Massachusetts Transportation Trust
Fund established under section 4 of chapter 6C of the General Laws; and provided further, that
funds in this item may be transferred to the department of conservation and
recreation.....\$159,800,000

Education and Transportation Fund...100%

SECTION 3. Chapter 10 of the General Laws is hereby amended by striking out section
35 and inserting in place thereof the following section:-

Section 35. (a) There shall be established and set up on the books of the commonwealth a
separate fund, to be known as the State Lottery and Gaming Fund. Said fund shall consist of all
revenues received from the sale of lottery tickets or shares, and all other monies credited or
transferred thereto from any other fund or source pursuant to law.

(b) In order to provide local property tax relief and continue services at the local level,
revenues of the lottery commission from sales pursuant to subsection (a) of section 25 shall be
expended only for the following purposes:

(i) for the payment of prizes to the holders of winning lottery tickets or shares;

(ii) for the expenses of the commission in administering and operating the lottery, as
certified by the secretary of administration and finance; provided, that the state treasurer shall
transfer the certified amount to the General Fund for said purposes; and

(iii) for budgeted aid to cities and towns as provided in section 18C of chapter 58, subject to appropriation.

(c) In order to expand access to affordable, high-quality childcare, revenues of the lottery commission from sales pursuant to subsection (b) of section 25 shall be expended only for the following purposes:

(i) for the payment of prizes to the holders of winning lottery tickets or shares;

(ii) for the expenses of the commission in administering and operating the lottery; and

(iii) for the Early Education and Care Operational Grant Fund established by section 19 of chapter 15D, subject to appropriation.

(d) For the purposes of accommodating discrepancies between the receipt of revenues and related expenditures, the commission may incur expenses and the comptroller may certify for payment expenses incurred in anticipation of revenues.

SECTION 4. Subsection (a) of section 78 of said chapter 10, as appearing in the 2024 Official Edition, is hereby amended by adding the following 4 paragraphs:-

As used in this section, the term “Korean Emergency” shall mean the period on or after June 25, 1950 to January 31, 1955.

As used in this section, the term “Persian Gulf War” shall mean the period on or after August 2, 1990 to April 10, 1991.

As used in this section, the term “Vietnam Conflict” shall mean the period on or after July 1, 1958 to May 17, 1975.

As used in this section, the term “World War II” shall mean the period on or after September 16, 1940 to July 25, 1947.

SECTION 5. Said section 78 of said chapter 10, as so appearing, is hereby further amended by inserting after the word “served”, in line 17, the following words:- , or is currently serving,.

SECTION 6. Said section 78 of said chapter 10, as so appearing, is hereby further amended by striking out, in lines 22 to 24, inclusive, the words “have been in the commonwealth for a period of not less than 6 months before the time of the person’s entry into the service” and inserting in place thereof the following words:- be in the commonwealth.

SECTION 7. Said section 78 of said chapter 10, as so appearing, is hereby further amended by inserting after the word “Medal”, in line 49, the following words:- , or equivalent Expeditionary Medal,.

SECTION 8. Said section 78 of said chapter 10, as so appearing, is hereby further amended by striking out, in lines 55 to 57, inclusive, the words “have been in the commonwealth for a period of not less than 6 months immediately before the time of the person’s entry into service” and inserting in place thereof the following words:- be the commonwealth.

SECTION 9. Subsection (b) of said section 78 of said chapter 10, as so appearing, is hereby amended by adding the following paragraph:-

(6) Upon application, as provided in this section and as specified in rules and regulations established by the state treasurer, there shall be allowed and paid out of the treasury of the commonwealth, without further appropriation, the sums specified in such rules and regulations to

110 each person who has served in the armed forces of the United States in active service as part of
111 World War II, the Korean Emergency, the Vietnam Conflict or the Persian Gulf War; provided,
112 however, that the domicile of a person on account of whose service the application is filed shall
113 be the commonwealth.

114 SECTION 10. Said section 78 of said chapter 10, as so appearing, is hereby further
115 amended by striking out, in line 68, the words “(i) mother or father” and inserting in place
116 thereof the following words:- (ii) mother or father.

117 SECTION 11. The first paragraph of subsection (e) of said section 78 of said chapter 10,
118 as so appearing, is hereby amended by striking out the fifth and sixth sentences.

119 SECTION 12. Said section 78 of said chapter 10, as so appearing, is hereby further
120 amended by striking out, in line 105, the word “section” and inserting in place thereof the
121 following word:- act.

122 SECTION 13. Said section 78 of said chapter 10, as so appearing, is hereby further
123 amended by striking out, in lines 111 and 112, the word “designed” and inserting in place thereof
124 the following word:- designated.

125 SECTION 14. Said section 78 of said chapter 10, as so appearing, is hereby further
126 amended by inserting after the word “service”, in line 123, the following words:- during the
127 enlistment period.

128 SECTION 15. Section 7 of chapter 15D of the General Laws, as so appearing, is hereby
129 amended by striking out, in lines 38 to 41, inclusive, the words “and all supported findings and
130 pending investigations of abuse or neglect available through the department of children and

families consistent with sections 51B, 51E, and 51F of chapter 119” and inserting in place thereof the following words:- all supported findings and pending investigations of abuse or neglect available through the department of children and families, consistent with sections 51B, 51E and 51F of chapter 119, and information contained in the disabled persons protection commission registry of abusive care providers, as established in section 15 of chapter 19C.

SECTION 16. Paragraph (ii) of subsection (a) of said section 7 of said chapter 15D, as so appearing, is hereby amended by adding the following sentence:- The department shall further obtain all information contained in the disabled persons protection commission registry of abusive care providers consistent with section 15 of chapter 19C.

SECTION 17. Section 30 of chapter 23B of the General Laws, as so appearing, is hereby amended by inserting after the word “appeal”, in lines 179 and 180, the following words:- ; provided, however, that assistance shall not be continued during the period of appeal for a termination arising from a: (a) reasonable cause to believe that a member of the household is engaging in or engaged in a criminal or significantly dangerous activity that threatens the health, safety or security of self, other residents, guests or staff; or (b) lack of children or pregnant women remaining in the household.

SECTION 18. Subparagraph (1) of paragraph (G) of said section 30 of said chapter 23B, as so appearing, is hereby amended by inserting after the definition of “Non-state-funded overflow emergency shelter site” the following definition:-

“Rapid track site”, a shelter site for unhoused families in the commonwealth that is eligible to receive funding as a temporary respite site under item 1599-2625 of section 2A of chapter 1 of the acts of 2025.

SECTION 19. Subparagraph (3) of said paragraph (G) of said section 30 of said chapter 23B, as appearing in section 4 of chapter 1 of the acts of 2025, is hereby further amended by striking out the figure “6” and inserting in place thereof the following figure:- 9.

SECTION 20. Said paragraph (G) of said section 30 of said chapter 23B, as amended by said section 4 of said chapter 1, is hereby further amended by striking out subparagraph (8) and inserting in place thereof the following subparagraph:-

(8) The executive office shall maintain rapid track sites that shall be available to eligible families, as determined by an assessment of family risk pursuant to guidance issued by the executive office, and shall be subject to appropriation, rules, regulations and availability, for a period of not more than 30 days, subject to any extensions upon written certification by the secretary of housing and livable communities; provided, that rapid track sites shall only be available to families who provide information sufficient to comply with paragraph (C¹/₂); provided further, that the length of stay at a rapid track site shall constitute a benefit received under the emergency housing assistance program for the purpose of calculating the length of stay limit pursuant to subparagraph (3); and provided further, that placement in a rapid track site shall not make a family ineligible for the bridge shelter track after proving eligibility pursuant to section 7 of chapter 1 of the acts of 2025. This paragraph shall apply during any period in which the secretary of housing and livable communities has determined that the shelter system is no longer able to meet all current and projected demand for shelter from eligible families considering the facts and circumstances then existing in the commonwealth.

SECTION 21. Section 5 of chapter 23J of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 10, 11 and 22, the words “August 15”, and inserting in place thereof, in each instance, the following words:- January 30.

SECTION 22. Section 9A of said chapter 23J, as so appearing, is hereby amended by striking out, in lines 113 and 114, the words “or offshore wind organization” and inserting in place thereof the following words:- , offshore wind organization or an entity engaged in port infrastructure development or operation in support of the offshore wind industry.

SECTION 23. Section 59 of chapter 23K of the General Laws, as so appearing, is hereby amended by striking out, in lines 29 and 30, the words “clause (c) of the second paragraph” and inserting in place thereof the following words:- clause (iii) of subsection (b).

SECTION 24. Section 63 of said chapter 23K, as so appearing, is hereby amended by striking out, in lines 10 and 11, the words “clause (c) of the second paragraph” and inserting in place thereof the following words:- clause (iii) of subsection (b).

SECTION 25. Chapter 26 of the General Laws is hereby amended by adding the following section:-

Section 13. (a) For the purposes of this section, “pharmacy benefit manager” shall have the same meaning as defined in section 1 of chapter 176Y.

(b) The commissioner of insurance may make and collect an assessment against pharmacy benefit managers licensed by the division of insurance pursuant to section 2 of chapter 176Y to pay for the expenses related to the regulation and oversight of pharmacy benefit managers, including, but not limited to: (i) defraying the cost of salaries of any financial analysts,

194 licensing staff, market conduct specialists, attorneys, special investigators, staff with expertise in
195 pharmacy and pharmaceutical processes, senior health researchers, administrative staff or any
196 other staff as may be necessary, as determined by the commissioner; and (ii) compensating
197 consultants, as necessary, retained by the commissioner. Said assessment shall be made at a rate
198 sufficient to produce not less than \$1,000,000 annually. The assessment amounts shall be
199 credited to the General Fund. The amount collected under this section shall be credited to the
200 funds to which the appropriations for the division of insurance are charged.

201 (c) The assessment shall be allocated on a fair and reasonable basis among all pharmacy
202 benefit managers licensed by the commissioner. The funds produced by said assessments shall be
203 expended by the division, in addition to any other funds which may be appropriated, to assist in
204 defraying the general operating expenses related to the regulation and oversight of pharmacy
205 benefit managers and may be used to compensate consultants retained by the commissioner. A
206 pharmacy benefit manager licensed by the commissioner shall pay the amount so assessed
207 against it within 30 days after the date of the notice of assessment from the commissioner.

208 SECTION 26. Section 39R of chapter 30 of the General Laws, as appearing in the 2024
209 Official Edition, is hereby amended by striking out, in lines 5 and 6, 12 and 13 and 60 and 61,
210 the words “thirty-eight A½ to thirty-eight O, inclusive, of chapter seven”, each time it appears,
211 and inserting in place thereof, in each instance, the following words:- 44 to 57, inclusive, of
212 chapter 7C.

213 SECTION 27. The first paragraph of subdivision (4) of section 16 of chapter 32 of the
214 General Laws, as so appearing, is hereby amended by adding the following 6 sentences:- If the
215 chair of the board determines that the volume of appeals has resulted in a backlog, the chair may,

in writing, inform the attorney general, the public employee retirement administration commission and the governor of the backlog and the need for additional board members to address the backlog. If the backlog involves matters related to disability retirement or interim benefits, the chair may also, in writing, inform the secretary of health and human services. Upon notification by the chair of a backlog of appeals to the board, the attorney general, the public employee retirement administration commission, the governor and, if such backlog involves matters related to disability retirement or interim benefits, the secretary of health and human services, each shall, subject to availability of staffing, designate or appoint such number of additional members as determined by the chair, but not more than 4 additional members each; provided, however, that the public employee retirement administration commission shall designate or appoint additional members only to the extent necessary to address a backlog of cases that do not pertain to disability retirement or interim benefits. The secretary of health and human services may designate qualified staff from agencies within the executive office. The additional members shall be designated or appointed in the manner and ratio of the board itself to serve on the contributory retirement appeal board for not more than 3 years. The chair of the board shall organize such additional members into panels assigned to each matter pending before the contributory retirement appeal board, and a panel so organized shall be empowered to decide and resolve the appeal; provided, that each panel so organized shall consist of 3 members reflecting the membership of the board with a chair of the panel as determined by the chair of the board.

SECTION 28. Section 33 of chapter 36 of the General Laws, as so appearing, is hereby amended by striking out the third paragraph, in lines 7 and 8, and inserting in place thereof the following paragraph:-

Register: A sum equivalent to the salary of the clerk of the superior court department for criminal business in the county of Suffolk.

SECTION 29. Section 7 of chapter 70B of the General Laws, as so appearing, is hereby amended by striking out, in line 3, the figure “\$1,200,000,000” and inserting in place thereof the following figure:- \$1,300,000,000.

SECTION 30. Said section 7 of said chapter 70B, as so appearing, is hereby further amended by adding the following paragraph:-

Notwithstanding the preceding paragraph, for each fiscal year starting in fiscal year 2027, following the authority’s review of its financial health and audited financial statements, the authority may vote to award additional grants up to 10 per cent over the limit set forth in this section. The amount of any such additional grants shall be calculated separately and shall not impact the calculation of the annual limit in subsequent fiscal years. The authority may periodically adopt guidelines and policies related to the administration of the annual limit and additional grants.

SECTION 31. Section 10 of said chapter 70B, as so appearing, is hereby amended by striking out the first sentence and inserting in place thereof the following 2 sentences:- The grant percentage for approved school projects shall be applied to eligible costs, as determined by the authority in accordance with this chapter and any applicable regulations, policies or procedures set forth by the authority to implement this chapter. Such grant percentage shall be calculated based on the following formula; provided, however, that no grant percentage shall be greater than 80 per cent, unless any such percentage reimbursement points in excess of 80 per cent are

earned by an eligible applicant for achieving the standards necessary to be awarded incentive percentage points by the authority in accordance with paragraph (C) of subsection (a).

SECTION 32. Section 17 of said chapter 70B, as so appearing, is hereby amended by striking out subsections (a) and (b) and inserting in place thereof the following 2 subsections:-

(a) The authority shall submit an annual report to the governor, the house and senate committees on ways and means and the joint committee on education.

(b) The authority shall also conduct a periodic survey of the cities, towns and regional school districts to determine the need for new school facility construction to meet demand. Such periodic surveys shall include a listing of each school building within the commonwealth, together with a description of its size, capacity, age and state of maintenance and whether such school is likely to require construction, enlargement, reconstruction, rehabilitation or improvement due to such factors, including, but not limited to, deterioration, anticipated increases in school-age population or lack of adequate facilities to meet educational standards. Upon completion, the authority shall make such periodic surveys publicly available and shall submit such periodic surveys to the governor, the house and senate committees on ways and means and the joint committee on education.

SECTION 33. Section 72W of chapter 111 of the General Laws, as so appearing, is hereby amended by inserting after the fifth paragraph the following paragraph:-

The department may, without a prior hearing, suspend or refuse to renew the certification of a nurses' aide who poses an immediate and serious threat to the public health, safety or welfare; provided, that a hearing shall be afforded to the nurses' aide, pursuant to chapter 30A,

281 not later than 7 days after the department's action to determine whether such summary action
282 was warranted.

283 SECTION 34. Section 72W¹/₂ of said chapter 111, as so appearing, is hereby amended by
284 striking out subsection (g) and inserting in place thereof the following 2 subsections:-

285 (g) The department may, without a prior hearing, suspend or refuse to renew the
286 certification of a certified medication aide who poses an immediate and serious threat to the
287 public health, safety or welfare; provided, that a hearing shall be afforded to the certified
288 medication aide, pursuant to chapter 30A, not later than 7 days after the department's action to
289 determine whether such summary action was warranted.

290 (h) The department shall promulgate rules and regulations to carry out this section.

291 SECTION 35. Chapter 112 of the General Laws is hereby amended by inserting after
292 section 61A the following section:-

293 Section 61B. A board of registration under the supervision of the department of public
294 health may, without a prior hearing, suspend or refuse to renew the license of a licensee who
295 poses an immediate and serious threat to the public health, safety or welfare; provided, that a
296 hearing shall be afforded to the licensee, pursuant to chapter 30A, not later than 7 days after the
297 board's action to determine whether such summary action was warranted.

298 SECTION 36. Chapter 152 of the General Laws is hereby amended by striking out
299 section 25A, as appearing in the 2024 Official Edition, and inserting in place thereof the
300 following section:-

Section 25A. In order to promote the health, safety and welfare of employees, every employer shall provide for the payment to their employees of the compensation provided for by this chapter in the following manner:

(1) By insurance with an insurer or by membership in a workers' compensation self-insurance group, established pursuant to the provisions of sections 25E to 25U, inclusive; or

(2) Subject to the rules of the department, by obtaining from the department annually a license as a self-insurer by conforming to either subparagraph (a) or (b) and to subparagraph (c) if required. Every employer desiring to be licensed as a self-insurer shall make application for such license on a form provided by the department. The application shall contain: (1) a sworn itemized statement of the assets and liabilities of the applicant; (2) a payroll report for the preceding fiscal year of the applicant; and (3) a detailed description of the nature and kind of business carried on.

(a) By keeping on deposit with the state treasurer in trust for the benefit and security of employees such amount of securities, not less in market value than \$100,000, as may be required by the department, said securities to be in the form of cash, bonds, stocks or other evidences of indebtedness as the department may require, and to be used, liquidated and disbursed only upon order of the department for the purposes of paying the benefits provided for by this chapter. The department shall, at least annually, and at its discretion more frequently, determine the liabilities of a self-insurer both incurred or to be incurred because of personal injuries to employees under this chapter. The department shall require an additional deposit or further security when the sum of the self-insurer's liability both incurred or to be incurred exceeds the deposit or any required reinsurance, or permit a decrease of said deposit provided the value of said deposit in no case

323 shall be less than \$100,000. The department may permit a substitution of securities in place of
324 those deposited. Interest, dividends and other income from said deposit or deposits shall be
325 payable to the employer that deposited them, unless the department directs otherwise. The
326 deposit or deposits may be returned to the employer if the employer shall: (i) insure with an
327 insurer under paragraph (1); (ii) qualify as a self-insurer under subparagraph (b); or (iii) cease to
328 transact business in the commonwealth; provided, that the employer shall demonstrate, to the
329 satisfaction of the department that they are not under any obligation to pay compensation under
330 this chapter, or, if the department so requires, they furnish the department with a single premium
331 non-cancellable policy, insuring the employer against any liability that may have arisen under
332 this chapter, or with a bond executed as surety by some company with a rating of "A" or higher
333 authorized to transact the business of workers' compensation insurance in this commonwealth, in
334 an amount and form approved by the department, guaranteeing the payment of any liability on
335 the employer's part that may have arisen under this chapter. No deposit so deposited shall be
336 assignable or subject to attachment or be liable in any way for the debt of the self-insurer. If an
337 employer engaged in interstate or foreign commerce certifies that the laws of the United States
338 provide for liability for injury to or death of its employees, the deposit shall be returned to the
339 employer less such amount as determined by the department as necessary to satisfy against
340 liability that may already have arisen under this chapter; provided, that such determination by the
341 department shall be reviewable by the superior court for the county in which the employer
342 resides, or, in the case of a corporation, where said corporation has a principal place of business.
343 Any bond issued pursuant to this subparagraph shall remain in full force and effect until a new
344 bond is issued on the same conditions as a bond issued under subparagraph (b) and with an

effective date approved by the department, and shall be subject to all provisions of this chapter and 452 C.M.R. 5.00.

(b) By furnishing annually a bond running to the commonwealth, with a surety company with a rating of “A” or higher authorized to transact business in the commonwealth as surety, in such form as may be approved by the department and in such amount not less than \$100,000 as may be required by the department. The bond shall be upon the condition that if the license of the principal shall be revoked, or if the principal shall cease to transact business in the commonwealth, or if the department shall refuse to renew the license, or if the principal shall insure with an insurer, then the department may, in its discretion, demand, and the principal then shall, deposit with the state treasurer 1 of the following: (i) an amount of securities equal to the penal sum of the bond; (ii) a single premium non-cancellable policy issued by some insurance company authorized to transact the business of workers’ compensation insurance in the commonwealth, insuring the principal against any liability that may have arisen under this chapter; or (iii) a bond executed as surety by some company with an “A” rating or above authorized to transact the business aforesaid in the commonwealth, in an amount and form approved by the department, guaranteeing the payment of any liability on the principal’s part that may have arisen under this chapter. Unless the department has made such demand and the principal has made such deposit with the treasurer, such bond shall remain in full force and effect for any and all liabilities of the self-insurer under this chapter. No deposit with the state treasurer under this section shall be assignable or subject to attachment or be liable in any way for the debt of the self-insurer.

The department shall, at least annually, determine the liabilities of a self-insurer both incurred or to be incurred because of personal injuries to employees under this chapter. The

department may at any time require an additional bond, similarly conditioned, or further security or permit a decrease in the amount of said bond; provided, that the amount of the bond or the bonds in no case shall be less than \$100,000. The liability of the surety shall not exceed in the aggregate the penal sum or sums stated in any such annual bond or bonds or in any endorsements giving effect to any such increase or reduction. The department may permit a substitution of a new bond or bonds for the bond or bonds that have been furnished and shall return the old bond or bonds to the self-insurer as soon as a new annual bond has been obtained. Any bond for which the department permits or requires substitution shall remain in full force and effect until a new bond is obtained with an effective date approved by the department. When a surety bond is activated under this chapter, the surety bond company shall, within 10 days of the activation, commence payment of any liabilities that may arise or have arisen under this chapter on behalf of the principal.

(c) As a further guarantee of a self-insurer's ability to pay the benefits provided for by this chapter to injured employees, every self-insurer shall make arrangements satisfactory to the department, by reinsurance, to protect it from extraordinary losses or losses caused by 1 disaster.

Such reinsurance shall be: (i) in such amounts and form as the department may approve; and (ii) effected with a company as provided in section 20 of chapter 175; provided, that the minimum amount shall be not less than \$500,000. Such reinsurance shall provide that the use or disposition of any money received by a self-insurer or former self-insurer under any such reinsurance shall be subject to the approval of the department, and no such money shall be assignable or subject to attachment or be liable in any way for the debt of the self-insurer unless incurred under this chapter. In the event that a surety bond is activated under this section, such reinsurance shall continue and such reinsurer shall continue to make payments on claims for

which payments have already commenced, commence payment on claims that reach the retention level set in the applicable reinsurance policy and, upon exhaustion of the surety bond or development of any deficiency in the bond, commence or continue payments for any liabilities that may arise or have arisen under this chapter.

The provisions of this paragraph shall not apply to common carriers by railroad that are subject to the provisions of the federal Employers Liability Act.

(3) The department may: (i) make rules governing self-insurers; and (ii) revoke or refuse to renew the license of a self-insurer because of the failure of such self-insurer promptly to make payments of compensation provided for by this chapter, or for any other reasonable cause. Any person aggrieved by the action of the department in refusing to grant a license or in revoking, or refusing to renew, a license of a self-insurer under this section or by the action of the department in requiring an additional deposit or further security under paragraph (a) of this section, or in requiring a further bond or security for an additional sum under paragraph (b) of this section may demand a hearing before the department, and if, after said hearing, the department denies their petition, the person may within 10 days after receipt of a notice stating reasons for such denial, file a petition in the superior court for Suffolk county for a review thereof; but the filing of such a petition shall not suspend the action of the department unless a stay thereof shall be allowed by the justice pending a final determination by the court. The court shall summarily hear the petition and may make any appropriate order or decree.

(4)(a) The commissioner of insurance shall require each insurer issuing a policy under this chapter to offer, as a part of the policy or as an optional endorsement to the policy, deductibles, including reasonable small deductibles optional to the policyholder for benefits

payable under this chapter. Deductible amounts offered shall be fully disclosed to the prospective policyholders in writing in amounts determined by the commissioner. The policyholder exercising the deductible option shall choose only 1 deductible amount.

(b) If the policyholder exercises the option and chooses a deductible, the insured employer shall be liable for the amount of the deductible for benefits paid for each compensable claim of work injury suffered by an employee or, at the option of the policyholder, an aggregate deductible as determined by the commissioner. The insurer shall pay all or part of the deductible amount, whichever is applicable, to a compensable claim, to the person or medical provider entitled to the benefits conferred by this chapter and then seek reimbursement from the insured employer for the applicable deductible amount. The payment or nonpayment of deductible amounts by the insured employer to the insurer shall be treated under the policy insuring the liability for workers' compensation in the same manner as payment or nonpayment of premiums.

(c) Optional deductibles shall be offered in each policy insuring liability for workers' compensation that is issued, delivered, issued for delivery, or renewed under this chapter on or after a date to be determined by the commissioner, unless an insured employer and insurer agree to renegotiate a workers' compensation policy in effect, so as to include a provision allowing for a deductible.

(d) Premium reductions for deductibles shall be determined by the commissioner of insurance. The commissioner of insurance may adopt rules or promulgate regulations to enforce this section relative to workers' compensation insurance deductibles.

(e) This subsection shall not apply to employers who are approved to self-insure against liability for workers' compensation or group self-insurance funds for workers' compensation established pursuant to the provisions of this chapter.

(f) The commissioner of insurance may promulgate regulations to enforce the provisions of this section.

SECTION 37. Section 7 of chapter 175M of the General Laws, as so appearing, is hereby amended by striking out, in lines 26, 68, 72 and 77, the figure "140", each time it appears, and inserting in place thereof, in each instance, the following figure:- 120.

SECTION 38. Chapter 731 of the acts of 1945 is hereby repealed.

SECTION 39. Chapter 210 of the acts of 1946 is hereby repealed.

SECTION 40. Chapter 581 of the acts of 1946 is hereby repealed.

SECTION 41. Chapter 440 of the acts of 1953 is hereby repealed.

SECTION 42. Chapter 646 of the acts of 1968 is hereby repealed.

SECTION 43. Chapter 325 of the acts of 1969 is hereby repealed.

SECTION 44. Subsection (e) of section 9 of chapter 152 of the acts of 1997 is hereby amended by inserting after the word "Fund" the following words:- ; and provided further, that the surcharge shall not apply to vehicular rental transaction contracts entered into with a car-sharing organization, as defined in section 32J of chapter 90 of the General Laws.

SECTION 45. Section 16 of chapter 130 of the acts of 2005 is hereby repealed.

SECTION 46. Section 71 of chapter 10 of the acts of 2015, as amended by chapter 146 of the acts of 2020, is hereby further amended by striking out the figure “2026” and inserting in place thereof the following figure:- 2032.

SECTION 47. Chapter 183 of the acts of 2022 is hereby amended by striking out section 4 and inserting in place thereof the following section:-

Section 4. The parcels of land that may be transferred to the department of agricultural resources pursuant to section 3 contain approximately 175 acres, and are shown as the agricultural fields numbered 4, 5, 10, 11, 12, 13, 14A, 14C, 15, 16, 17, 18, 19, 20 and 22 on the plan entitled “Plan of Land in Templeton, MA” prepared by Northeast Survey Consultants and dated July 27, 2017 on file with the division of capital asset management and maintenance, subject to modifications pursuant to section 3 and the parcel shown as AF13 and the western portion of AF1, both of which are owned by the commonwealth and currently used as agricultural fields, containing approximately 54 acres on the plan entitled “Plan of Land in Templeton, MA & Phillipston, MA” prepared by Northeast Survey Consultants and dated March 18, 2025 and recorded in Worcester county registry of deeds book 983, page 11.

SECTION 48. Said chapter 183 is hereby further amended by striking out section 6 and inserting in place thereof the following section:-

Section 6. The agricultural fields and parcels that may be conveyed pursuant to section 5 are the agricultural fields numbered 2, 3, 6, 7, 8, 9 and 14B and the parcels labeled LA 2, LA 3 and LA 4 on the plan entitled “Plan of Land in Templeton, MA” prepared by Northeast Survey Consultants and dated July 27, 2017 on file with the division of capital asset management and maintenance, subject to modifications pursuant to section 5, and the parcels shown as SP2, SP6

and the eastern portion of AF1 containing approximately 10 acres on the plan entitled “Plan of Land in Templeton, MA & Phillipston MA” prepared by Northeast Survey Consultants and dated March 18, 2025 and recorded in Worcester county registry of deeds book 983, page 11.

SECTION 49. Item 1596-2511 of section 2A of chapter 7 of the acts of 2025 is hereby amended by adding the following words:- ; provided further, that the commissioner of early education and care may transfer funds from this item to items 3000-3060 and 3000-4060.

SECTION 50. Item 7004-9315 of section 2 of chapter 9 of the acts of 2025 is hereby amended by striking out the figure “\$3,571,512”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$5,571,512.

SECTION 51. Item 8100-0102 of said section 2 of said chapter 9 is hereby amended by striking out the figure “\$52,000,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$55,000,000.

SECTION 52. Item 1599-1778 of section 2 of chapter 14 of the acts of 2025 is hereby amended by inserting after the word “community”, the second time it appears, the following words:- and such funds shall be made available until December 31, 2026.

SECTION 53. Notwithstanding section 23 of chapter 59 of the General Laws, section 31 of chapter 44 of the General Laws or any other general or special law to the contrary, with the approval of the director of accounts, a city or town may amortize over the subsequent 3 fiscal years, in equal installments or more rapidly, the amount of its deficit related to the outbreak of the 2019 novel coronavirus, also known as COVID-19, and subsequent variants. The commissioner of revenue shall issue guidelines or instructions for reporting the amortization of deficits authorized by this section. The local appropriating authority, as defined in section 21C of

said chapter 59, shall adopt a deficit amortization schedule in accordance with the department of revenue's guidelines or instructions under this section before setting the municipality's next fiscal year tax rate.

SECTION 54. There shall be a special commission to study the functions of the various registries of deeds and examine opportunities for consolidation.

The commission shall evaluate and report on the organizational structure of all registries of deeds and make recommendations on if registries not covered under chapter 48 of the acts of 1997 for abolished counties should be subject to section 10 of chapter 34B of the General Laws or if the supervision of all registries of deeds should be altered. In developing a list of suggestions, the commission shall consider: (i) the volume of transactions for each office; (ii) the potential to consolidate multiple county offices; (iii) the standardizing of operational procedures; and (iv) the pay structure for elected registrars based on the size and transaction volume for each office and other appointed staff not covered by any collective bargaining agreements.

The commission shall consist of 7 members: 2 members appointed by the governor, 1 of whom shall serve as chair; 2 members appointed by the secretary of the commonwealth, 1 of whom shall serve as vice-chair; 1 member appointed by the senate president; 1 member appointed by the speaker of the house of representatives; and 1 member of the Massachusetts registers of deeds association.

The first meeting of the commission shall be convened not more than 30 days after members have been appointed.

The commission shall submit a written report of its findings with the clerks of the senate and house of representatives, the senate president and the speaker of the house of representatives not later than December 31, 2026.

SECTION 55. Notwithstanding any general or special law to the contrary, in each of fiscal years 2026 and 2027, the comptroller, at the direction of the secretary of administration and finance, shall transfer from the General Fund to the Massachusetts Offshore Wind Industry Investment Trust Fund established in section 9A of chapter 23J of the General Laws an amount not to exceed \$35,000,000; provided, that not less than 15 days in advance of the transfer, the secretary shall certify the amount to be transferred, to the chairs of the house and senate committees on ways and means.

SECTION 56. Notwithstanding any general or special law to the contrary, for fiscal year 2026, the secretary of administration and finance shall transfer funds from the Communications Access Trust Fund established pursuant to section 2XXXXXX of chapter 29 of the General Laws for the purpose of making payments to the department of correction and the sheriffs for providing voice communication services, in the following manner: \$10,000,000 to the department of correction; \$1,653,987 to the Bristol sheriff's office; \$108,712 to the Hampshire sheriff's office; \$429,193 to the Berkshire sheriff's office; \$567,296 to the Barnstable sheriff's office; \$15,152 to the Dukes County sheriff's office; \$1,552,291 to the Essex sheriff's office; \$392,076 to the Franklin sheriff's office; \$538,188 to the Hampden sheriff's office; \$1,525,788 to the Middlesex sheriff's office; \$784,043 to the Norfolk sheriff's office; \$1,199,999 to the Plymouth sheriff's office; \$2,191,927 to the Suffolk sheriff's office; and \$1,562,237 to the Worcester sheriff's office; provided, however, that the secretary may amend transfer amounts

538 based on actual costs incurred and shall certify final transfer amounts to the house and senate
539 committee on ways and means no fewer than 15 days before making any such transfers.

540 SECTION 57. Notwithstanding any general or special law to the contrary, to account for
541 any timing discrepancy presented by the initial application of clause (i) of subsection (b) of
542 section 2EEEEEE of chapter 29 of the General Laws relating to the Commonwealth Federal
543 Matching and Debt Reduction Fund, said section 2EEEEEE of said chapter 29 shall not apply to
544 the determination of the applicability of fiscal year 2026 interest transfers.

545 SECTION 58. Sections 5, 15 and 16 shall take effect July 1, 2027.

546 SECTION 59. Section 31 shall take effect for any school project approved by the
547 Massachusetts school building authority on or after July 1, 2026.